

Instincts and Institutions

What we call an instinct and what we call an institution essentially designate procedures of satisfaction. On the one hand, an organism reacts instinctively to external stimuli, extracting from the external world the elements which will satisfy its tendencies and needs; these elements comprise worlds that are specific to different animals. On the other hand, the subject institutes an original world between its tendencies and the external milieu, developing artificial means of satisfaction. These artificial means liberate an organism from nature though they subject it to something else, transforming tendencies by introducing them into a new milieu. So money will liberate you from hunger, provided you have money; and marriage will spare you from searching out a partner, though it subjects you to other tasks. In other words, every individual experience presupposes, as an *a priori*, the existence of a milieu in which that experience is conducted, a species-specific milieu or an institutional milieu. Instinct and institution are the two organized forms of a possible satisfaction.

There is no doubt that tendencies find satisfaction in the institution: sexuality finds it in marriage, and avarice in property. The example of an institution like the State, it will be objected, does not have a tendency to which it corresponds. But it is clear that such institutions are secondary: they already presuppose institutionalized behaviors, recalling a derived utility that is properly social. In the end, this utility locates the principle from which it is derived in the relation of tendencies to the social. The institution is always given as an organized system of means. It is here, moreover, that we find the difference between institution and law: law is a limitation of actions, institution a positive model for action. Contrary to theories of law which place the positive outside the social (natural rights), and the social in the negative (contractual limitation), the theory of the institution places the negative outside the social (needs), so as to present society as essentially positive and inventive

(original means of satisfaction). Such a theory will afford us the following political criteria: tyranny is a regime in which there are many laws and few institutions; democracy is a regime in which there are many institutions, and few laws. Oppression becomes apparent when laws bear directly on people, and not on the prior institutions that protect them.

But if it is true that tendencies are satisfied by the institution, the institution is not explained by tendencies. The same sexual needs will never explain the multiple possible forms of marriage. Neither does the negative explain the positive, nor the general the particular. The "desire to whet your appetite" does not explain drinks before dinner, because there are a thousand other ways to whet your appetite. Brutality does not explain war in the least; and yet brutality discovers in war its best means. This is the paradox of society: we are always talking about institutions, but we are in fact confronted by procedures of satisfaction—and the tendencies satisfied by such procedures neither trigger nor determine the procedures. Tendencies are satisfied by means that do not depend on them. Therefore, no tendency exists which is not at the same time constrained or harassed, and thus transformed, sublimated—to such an extent that neurosis is possible. What is more, if needs find in the institution only a very indirect satisfaction, an "oblique" satisfaction, it is not enough to say "the institution is useful," one must still ask the question: useful for whom? For all those who have needs? Or just for a few (the privileged class)? Or only for those who control the institution (the bureaucracy)? One of the most profound sociological problems thus consists in seeking out the nature of this other instance, on which the social forms of the satisfaction of tendencies depend. The rituals of a civilization? The means of production? Whatever this other instance is, human utility is always something else than mere advantage. The institution sends us back to a social activity that is constitutive of models of which we are not conscious, and which are not explained either by tendencies or by utility, since human utility presupposes tendencies in the first place. In this sense, the priest, the man of ritual, always embodies the unconscious of the ritual's users.

How different is instinct? With instinct, nothing goes beyond utility, except beauty. Whereas tendencies were indirectly satisfied by the institution, they are directly satisfied by instinct. There are no instinctive prohibitions, or instinctive coercions; only repugnancies are instinctive. In this case, it is the tendencies themselves, in the form of internal psychological factors, that trigger certain behaviors. Undoubtedly, too, these internal factors will not explain how they, even if they were the self-same factors, trigger different behaviors in different species. In other words, instinct finds itself at the intersection of a double causality, that of individual psychological factors and that of the species itself—hormones and species-specificity. Thus, we ask ourselves only to what extent instinct can be reduced to the simple interest of

the individual: in which case, if we take it to the limit, we should no longer speak of instinct, but rather of reflex, of tropism, of habit and intelligence. Or is it that instinct can be understood only within the framework of an advantage to the species, a good for the species, an ultimate biological cause? "Useful for whom?" is the question we rediscover here, but its meaning has changed. Instinct, seen from both angles, is given as a tendency launched in an organism at species-specific reactions.

The problem common to instinct and to institution is still this: how does the synthesis of tendencies and the object that satisfies them come about? Indeed, the water that I drink does not resemble at all the hydrates my organism lacks. The more perfect an instinct is in its domain, the more it belongs to the species, and the more it seems to constitute an original, irreducible power of synthesis. But the more perfectible instinct is, and thus imperfect, the more it is subjected to variation, to indecision, and the more it allows itself to be reduced to the mere play of internal individual factors and exterior circumstances—the more it gives way to intelligence. However, if we take this line of argument to its limit, how could such a synthesis, offering to the tendency a suitable object, be intelligent when such a synthesis, to be realized, implies a period of time too long for the individual to live, and experiments which it would not survive?

We are forced back on the idea that intelligence is something more social than individual, and that intelligence finds in the social its intermediate milieu, the third term that makes intelligence possible. What does the social mean with respect to tendencies? It means integrating circumstances into a system of anticipation, and internal factors into a system that regulates their appearance, thus replacing the species. This is indeed the case with the institution. It is night because we sleep; we eat because it is lunchtime. There are no social tendencies, but only those social means to satisfy tendencies, means which are original because they are social. Every institution imposes a series of models on our bodies, even in its involuntary structures, and offers our intelligence a sort of knowledge, a possibility of foresight as project. We come to the following conclusion: humans have no instincts, they build institutions. The Human is an animal decimating its species. Therefore, instinct would translate the urgent needs of the animal, and the institution the demands of humanity: the urgency of hunger becomes in humanity the demand for bread. In the end, the problem of instinct and institution will be grasped most acutely not in animal "societies," but in relations of animal and humans, when the demands of men come to bear on the animal by integrating it into institutions (totemism and domestication), when the urgent needs of the animal encounters the human, either fleeing or attacking us, or patiently waiting for nourishment and protection.